

Yatendra Singh Panwar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 August 2016 · Writ-C No. 36584 of 2016 · **Recovery citation stayed against petitioner; notice on 4.3(f)(v) challenge**

HEADNOTE

Interlocutory order connecting a recovery-citation writ with a pending challenge to clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005. Notice issued to the Advocate General and respondent no. 6; enforcement of the recovery citation against the petitioner stayed, with recovery from respondent no. 6 left open. Validity of the clause and liability on merits not decided. A 2023 listing order decided nothing.

FACTUAL SUMMARY

Yatendra Singh Panwar petitioned the Allahabad High Court against a recovery citation for electricity dues issued against him by the State of U.P. and licensee respondents. The writ was connected with Writ-C No. 8370 of 2016, which challenged clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005. On 8 August 2016 the Division Bench issued notice to the Advocate General and respondent no. 6, stayed enforcement of the citation against the petitioner, and left the respondents free to recover the dues from respondent no. 6. A 24 February 2023 order only directed relisting.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(v)

interim stay of recovery pending challenge to clause 4.3(f)(v)

HOLDING

Pending admission of a connected writ challenging clause 4.3(f)(v) of the Electricity Supply Code, 2005, notice is to issue to the Advocate General and respondent no. 6; a recovery citation shall not be enforced against the petitioner, though the respondents remain free to recover the dues from respondent no. 6. ¶ 1

PRINCIPLE TAGS

arrears-run-with-the-premises

Interlocutory order connecting a recovery-citation writ with a pending challenge to clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005. Notice issued to the Advocate General and respondent no. 6; enforcement of the recovery citation against the petitioner stayed, with recovery from respondent no. 6 left open.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF CLAUSE 4.3(F)(V)

Challenge pending in connected Writ-C No. 8370 of 2016; notice issued to the Advocate General; no merits ruling. ¶ 1

NOT DECIDED — PETITIONER'S LIABILITY FOR THE DUES

Only an interim stay of the recovery citation; liability not examined. ¶ 1